

**IN THE UNITED STATES DISTRICT COURT,
MIDDLE DISTRICT OF FLORIDA**

Tampa Division

DAVIS MATTHEW,
Plaintiff,

Case No.:

v.

SHERIFF CHRIS NOCCO, in his
official capacity as Sheriff of Pasco
County, and Pasco County Sheriff's
Office,
Defendant.

Federal Complaint

Demand for Jury Trial

COMPLAINT FOR VIOLATION OF CONSTITUTIONAL RIGHTS

UNDER 42 U.S.C. § 1983.

I. INTRODUCTION

Plaintiff, Matthew Aaron Davis, brings this lawsuit pursuant to 42 U.S.C. § 1983 and related statutes, seeking redress and declaratory relief. While acting under color of law, for systemic constitutional and parental rights violations committed by the Pasco County Sheriff. The Plaintiff alleges that the unlawful removal of children from their parents custody, separating families without court order or any physical tangible evidence of extrigent circumstances that directly effect children. Destroying "united estates" within the United States of America as follows:

II. JURISDICTION AND VENUE

1. Jurisdiction is proper under 28 U.S.C. § 1331 and 28 U.S.C. § 1343 as it seems redress for constitutional violations done under color of law..
2. Venue is proper in the Middle District of Florida under 28 U.S.C. § 1391(b), as the actions giving rise to these claims occurred within this district.

III. PARTIES

3. Plaintiff, Matthew Aaron Davis, a resident of Zephyrhills, Florida and former Pasco County Public Works First Responder (12403).
4. Defendants include Pasco County Sheriff, which is a law enforcement entity of the state of Florida and its officials who acted under color of state law
5. Defendant Sheriff Chris Nocco is the elected official of the Pasco County Sheriff Department and is responsible under color of law for practices and procedures done by his subordinates and the Department itself.

IV. FACTUAL ALLEGATIONS

6. On December 10, 2020 the Plaintiff was arrested for domestic battery at his residence where his ex-fiancee and two children in common lived.

Documented in case number 2020MM004755MMAXES with the Sixth Judicial Circuit Court in and of Pasco County Florida.
7. Following the incident on December 11, 2020 the Department of Children and Families presented a Child Safety Plan that states “ The parent legal

guardian is violent impulsive or acting dangerously in ways that have harmed the child or will harm the child.” Signed by the maternal great grandparents and the children's mother, Christina Renee Hills, who had her rights removed years prior.

8. The Plaintiff was released on bond on December 12, 2020 and went to retrieve his children of which he had sole custody of and solely supported from the day they were born. Only to be met with retaliation by the maternal great grandparents. When Pasco County Sheriff arrived the Plaintiff was refused his children and threatened with charges of kidnapping and was told that I would have a prompt court date to assess this situation.
9. On December 28, 2020, the Defendants, acting under color of state law, removed Plaintiff's children from Plaintiff's custody.
10. On February 11, 2021 all charges of domestic battery were dropped as “no information” was filed with the Sixth Judicial Circuit Court in and of Pasco County Florida by the States Attorney Office. The Defendant continued to this day to enforce the separation of the Plaintiff and his children.
11. In March 2021 the Plaintiff received his first child dependency case hearing.
12. At the time of the removal, December 28, 2020, Plaintiff had lawful custody of the children.

13. The removal of the children occurred without a court order authorizing the removal.

14. At the time of the removal, there were no extrigent circumstances present that would justify the removal of the children without a court order.

15. The Defendants' actions constitute an arbitrary and unwarranted interference with Plaintiff substantive due process rights

16. Also the Plaintiffs fundamental right to care, custody and control under the Fourteenth Amendment.

17. The Defendants acted under color of state law, and their actions directly caused the deprivation of Plaintiff constitutional rights in their enforcement of separation of the Plaintiff and his children.

18. Plaintiff was placed under a Florida State's Attorney Investigation on March 22, 2021 and served time incarcerated from July 30, 2022 to April 12, 2023 on seemingly unrelated charges. Tolling of the statute of limitations should pause any and all statute of limitations for any and all claims of justice during this time..

V. CAUSE OF ACTION

COUNT I: VIOLATION OF FOURTH AMENDMENT RIGHTS

19. Plaintiff realleges and incorporates by reference paragraphs 1 through 17 as though fully set forth herein.

20. The removal of Plaintiff children by the Defendant without a court order and without probable cause constitutes an unreasonable seizure in violation of the Fourth Amendment to the United States Constitution.

21. As a direct and proximate result of the Defendants' violation of Plaintiff's Fourth Amendment rights, Plaintiff has suffered and continues to suffer severe emotional distress, mental anguish, loss of family ties with his children, and other developmental and psychological damages done to the children

22. As constitutional right violations bring civil actions to hold those accountable, the Plaintiff and his children are entitled to monetary, punitive, injunctive, and declaratory relief.

COUNT II: VIOLATION OF FOURTEENTH AMENDMENT DUE PROCESS RIGHTS

23. Plaintiff realleges and incorporates by reference paragraphs 1 through 21 as though fully set forth herein.

24. The Defendant deprived the Plaintiff of his fundamental right to the care, custody, and management of his children without due process of law in violation of the Fourteenth Amendment to the United States Constitution by removing children unlawfully without due process by court order.

25. This includes the failure to provide adequate procedural safeguards prior to the removal of the children in the absence of extrigent circumstances that contain physical tangible evidence where the children are in direct harm.

26. As a direct and proximate result of the Defendants' violation of Plaintiff's Fourteenth Amendment due process rights, Plaintiff has suffered and continues to suffer severe emotional distress, mental anguish, loss of family ties with his children, and psychological, developmental damages done to the children.

27. As constitutional right violations bring civil actions to hold those responsible, the Plaintiff and his children are entitled to monetary, punitive, Injunctive and declaratory relief.

COUNT III: VIOLATION OF 42 U.S.C. § 1983

28. Plaintiff realleges and incorporates by reference paragraphs 1 through 26 as though fully set forth herein.

29. The Defendants, acting under color of state law, subjected Plaintiff to the deprivation of rights, privileges, or immunities secured by the Constitution and laws of the United States, specifically the Fourth and Fourteenth Amendments, in violation of 42 U.S.C. § 1983.

30. As a direct and proximate result of the Defendants' unlawful conduct, Plaintiff and his children have suffered and continue to suffer severe

emotional distress, mental anguish, loss of family ties and developmental, psychological damages done to Plaintiff and children alike.

31. As constitutional right violations under color of law bring civil actions under 42 U.S.C. § 1983 the Plaintiff and his children are entitled to monetary, punitive, Injunctive and declaratory relief

VI. PRAYER FOR RELIEF

WHEREFORE, Plaintiff(s) respectfully requests that this Court:

- Declare that the Defendants' actions violated Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. § 1983.
- Issue a emergency mandatory injunction ordering the Defendants to immediately return the custody of Plaintiff's children to Plaintiff!
- Declaratory and or injunctive relief to stop unlawful practices done by the Defendant.
- Award Plaintiff's children compensatory damages in an amount sufficient to compensate them for their emotional distress, mental anguish, loss of family ties and other developmental, psychological damages sustained as a result of the Defendants' unlawful actions. In the amount to be determined by the courts.

- Award Plaintiff punitive damages against the Defendants for their willful and reckless disregard of Plaintiff's constitutional rights in the amount to be determined by the courts.
- Award Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988.
- Grant such other and further relief as the Court deems just and proper.

Respectfully demand for trial by jury on all matters triable and submitted.



Matthew Aaron Davis
4538 Charter St.
Zephyrhills, FL 33541.
656-212-3599
DavisMatthewA2024@gmail.com

April 7, 2025

IN THE UNITED STATES FEDERAL COURT
THE MIDDLE DISTRICT OF FLORIDA
Tampa Division

DAVIS MATTHEW,
Plaintiffs,

v

SHERIFF CHRIS NOCCO, in his
official capacity as Sheriff of Pasco
County, and Pasco County Sheriff's
Office,
Defendant.

Case No.:

Certificate of Service

CERTIFICATE OF SERVICE

I, Matthew Aaron Davis, hereby certify that on this 7th day of April year 2025, I
served a true and correct copy of the following documents:

1. Class Action Complaint under Title 42 U.S.C. statue 1983.
2. Certificate of Service
3. In Forma Pauperis

Additionally, I certify that the aforementioned documents have been electronically
filed with the Clerk of Court for the United States District Court, Middle District of
Florida, via the Clerk of Court, which will send a notice of electronic filing to all

counsel of record. I declare under penalty of perjury, under the laws of the United States of America, that the foregoing is true and correct.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'Matthew A. Davis', with a long horizontal stroke extending to the right.

Matthew Aaron Davis
4538 Charter St.
Zephyrhills, FL 33542
Phone: 655-212-3599
Email: DavisMatthewA2024@gmail.com

Date: April 7, 2025